

**IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), GURUGRAM**  
**CIVIL SUIT NO. 612 OF 2025**

Karan Vohra

... *PLAINTIFF*

**VERSUS**

Manpreet Sidhu

... *DEFENDANT*

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**REPLICATION TO THE WRITTEN STATEMENT**

1. The Plaintiff denies the contentions raised in paragraphs 3 to 11 of the Written Statement and reiterates the averments made in the Plaint.
2. As to paragraph 4 of the Written Statement, the Agreement to Sell does not contain any express stipulation making time of the essence, and the Defendant never called upon the Plaintiff, by notice or otherwise, to perform within a fixed further period after the due date, as required in law before time can be treated as essential.
3. It is denied that the mere fixing of a date for payment of the balance consideration, without more, renders time essential to a contract for sale of immovable property; this is well settled, and the Defendant's contention to the contrary in paragraph 4 of the Written Statement is misconceived.
4. As to paragraph 5, the Plaintiff's bank loan sanction dated 10.02.2025 (Ex. P-7) was obtained nearly two months ahead of the due date of 05.04.2025 and demonstrates continuous readiness and willingness on the part of the Plaintiff, contrary to the Defendant's contention.
5. As to paragraph 6, it is denied that any default is attributable to the Plaintiff. Any latitude on timing was extended at the Defendant's own suggestion and cannot now be turned around to allege default by the Plaintiff; the absence of a separate writing recording the same is entirely a consequence of the Defendant's own conduct in not reducing the accommodation to writing despite being in a position to do so.
6. As to paragraphs 7 and 8, it is denied that the earnest money is liable to forfeiture. On the contrary, the Defendant's own conduct in seeking to deal with the suit property with a third party demonstrates his unwillingness to perform the Agreement.
7. The Plaintiff further points out that the Written Statement is self-contradictory, admitting execution of the Agreement to Sell in paragraph 3 while denying the very same execution in paragraph 9, an approbation and reprobation that is impermissible in law and is fatal to the Defendant's defence.
8. The Plaintiff craves leave to rely on the Agreement to Sell (Ex. P-1), the Earnest Money Receipts (Ex. P-2) and the Bank Loan Sanction Letter (Ex. P-7), and reiterates that he is entitled to a decree of specific performance as prayed in the Plaint.

**VERIFICATION**

I, the Plaintiff, verify that the contents of this Replication are true.

*Verified at Gurugram on this the 25th day of August, 2025.*

Plaintiff

(Karan Vohra)

Mr. Vikram Ahuja, Advocate for the Plaintiff

Enrolment No. HAR/2214/2010